

Recorded in Will Book G, Pages 76-78
Botetourt County Circuit Court Clerk's Office

Will of Peter Noftsinger
(For remainder of Will, see Page 103)

In the name of God, Amen. I **Peter Noftsinger** the County of **Botetourt** and State of Virginia being in perfect sense and memory but knowing that it is ordained for all men once to die, do make and declare this to be my last will and testament in manner and form following to wit: My soul I resign in the hands of God who gave it in hope of an immortal insurrection at the last day, and my body to the earth to be buried in the decent Christian like manner by my Executors here-in-after named. I direct that my said executors in the first place pay off and discharge all my funeral expenses and any he just debts which may be from me owing, and to enable them to do so I hereby direct that any funds that may be on hand at my death or claims do me now, be applied for that purpose.

As it respects my worldly effects with which it has please God to help me, I dispose of as follows.

To my **son Jacob Noftsinger** I bequeathed the sum of 5 dollars he having received his full share of my estate.

To my **daughter Hannah Snider** I give and bequeath to some of 5 dollars she having received her full share of my estate.

To my **son Joseph Noffsinger** I give and bequeath To some of 5 dollars he having received his full share my state.

To the children of my **late son John Noffsinger** deceased to them and their heirs forever I give and bequeath the track of land on which they now live containing by survey 400 acres and known on the plat of division of my lands as lot # 4 which said land is to be equally divided among them when they youngest Child shall arrive at the full age and I further direct that **Susan the widow** of my said son John Noftsinger shall remain on said place during her widowhood until the youngest child shall arrive at full age should she survive that long, but in the mean time should she marry, then shell the right to remain and live on said place, cease.

To my **daughter Polly Noftsinger** I bequeath the sum of 5 dollar to be paid her within two years of my death by my executors and I hereby charge my estate with the said legacy, but should this sum be paid to my daughter Polly during my lifetime (which will be evidenced by her receipt to me) then the aforesaid bequest to be null and void.

To my **daughter Nancy** and her husband **Samuel Hoff** and there heirs forever I give and bequeath the track of land on which they now live containing 277 1/2 acres known as lot #1 in the plat on my land and distinctively marked out by metes and bounds.

To my **son Samuel Noftsinger** and his heirs forever I give and bequeath a track of land on which he now live, also my tract of land of 450 acres adjoining the first which last track was originally granted to Wm Richey by patent dated 3rd Feb 1795 (including mill track).

To my **daughter Sally Stover** and her husband **Jacob Stover** and their heirs forever I give and bequeath the track of land which they now live containing 297 acres and known in the plat division aforesaid by No's 2 & # and distinctively marked by metes and bounds.

To my **son David Noftsinger** and his heirs forever I give and bequeath my mill and the track of land lying on the East side Catawba Creek reserving the right to my beloved wife Mary and my daughter Polly to remain on said tract of land during their lives.

To my **dear wife Mary** during her natural life, and my daughter Polly after the death of her mother, I give and bequeath all of my stock of every description together with all my household goods and personal effects of every description, together with any money or bonds which may remain after discharging all claims against my estate, to be there in after entire disposal.

The plantation near Fincastle on which my son Jacob Noftsinger and his family resides I have disposed of agreeable to an instrument in writing which will be found among my papers, and which is to be binding as fully and effectually as if the same were made part of my last will and testament.

And lastly I hereby constitute and appoint my son David Noftsinger and son-in-law Jacob Stover of this ,y last will and testament hereby satisfying and confirming this to be my only true last will and testament and revoking all other ad former wills by me heretofore made. In testimony where of I have hereunto set my hand and a fixed my seal this 28th day of January in the year 1841

His
Peter s x Noftsinger
Mark.

Signed sealed published and declared by the said Peter Noffsinger as and for his last will and testament in our presence

William Kyle

Feredinand Woltz

Teste - Wm Robinson D.C.